

HOUSE No. 2296

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act amending the MBTA communities act to provide recategorization and alternative compliance.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/17/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/21/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/28/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/28/2025</i>
<i>David K. Muradian, Jr.</i>	<i>9th Worcester</i>	<i>1/29/2025</i>
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>9/9/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/30/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>3/10/2025</i>
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	<i>3/17/2025</i>
<i>Norman J. Orrall</i>	<i>12th Bristol</i>	<i>3/27/2025</i>
<i>David Allen Robertson</i>	<i>19th Middlesex</i>	<i>8/13/2025</i>

HOUSE No. 2296

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 2296) of Bradley H. Jones, Jr. and others for legislation to provide recategorization and alternative compliance under the MBTA communities act, so-called. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act amending the MBTA communities act to provide recategorization and alternative compliance.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 3A of chapter 40A of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by adding the following subsection:-

3 (d) An MBTA community designated as "adjacent" may submit a written petition to the
4 executive office of housing and livable communities requesting a review of its designation. The
5 petition shall include evidence demonstrating that the designation imposes undue burdens due to
6 a lack of infrastructure or resources to support the requirements of this section. The executive
7 office shall promulgate regulations to establish the criteria and procedures for reviewing such
8 petitions and determining whether a community's designation should be modified.